

		<i>Monetary Sanction</i> Plaintiff seeks monetary sanctions against Uber for failure to comply with the Subpoena, requests that Uber pay to Plaintiff the reasonable expenses incurred in bringing this motion, including reasonable attorney’s fees, in the amount of \$2,060.00, pursuant to Code of Civil Procedure sections 2025.480, 1987.1, 2020.240, 2023.010-2023.050, et seq. The court may impose monetary sanctions against anyone engaging in conduct that is a misuse of the discovery process. (Code Civ. Proc. § 2023.030(a).) In light of the Court’s ruling, the Court GRANTS Plaintiff a monetary sanction against Uber in the reduced amount of \$1,310 (2.5 hours x \$500 + \$60 filing fee), to be paid within 30 days. (Code Civ. Proc. §§ 1987.2(a), 2025.480(j), 2023.030(a).) There is no showing that Uber acted with substantial justification or that other circumstances make the imposition of a monetary sanction unjust. Plaintiff also requests an additional sanction of \$1,000 pursuant to Code of Civil Procedure section 2023.050. The notice of motion does not clearly specify that Plaintiff is seeking an additional \$1,000 monetary sanction pursuant to Code of Civil Procedure section 2023.050. Therefore, the request for an additional sanction of \$1,000 is DENIED. Plaintiff to give notice.
8.	30-2024-01442123 Huy vs. Lake Mission Viejo Association	1. Motion to Compel Further Responses to Form Interrogatories 2. Motion to Compel Production Defendant Park West Landscape Maintenance Inc. (“Defendant”) moves to compel further responses to Requests for Production Nos. 28-30, 34, and 50 plus \$1,845 in sanctions. Defendant also moves to compel further responses to Form Interrogatories Nos. 2.13, 6.5, 8.7, 10.1, and 17.1 plus \$1,845 in sanctions. Plaintiff Nancy Huy (“Plaintiff”) opposes both motions. In her opposition, Plaintiff requests sanctions against Defendant and Defendant’s counsel of record, jointly and severally, in the amount of \$5,500.00 pursuant to Code of Civil Procedure section 2023.010, section 2023.020 and 2023.300(d), for filing procedurally defective motions, failing to properly meet and confer and filing motions that lack merit. Consistent with the Court’s 07/06/2026 order, the Court finds that the motions are timely and the Court will reach the merits of the motions. (ROA 124.) The <u>motion to compel further responses to form interrogatories</u> is GRANTED as to interrogatories 2.13(g) (Plaintiff must state the condition for which the substance was prescribed or furnished), 6.5, and 8.7 (the math provided by Plaintiff does not add up) and DENIED as to 10.1 and 17.1. The <u>motion to compel further responses to requests for production</u> is DENIED as to requests 28-30, 34, and 50.

		Plaintiff shall provide further code compliant responses to the discovery identified above <u>within 30 days of notice of this ruling.</u> All requests for sanctions are DENIED. Defendant to give notice.
10.	30-2024-01372227 Cheng vs. Fang	1. Motion for Leave to File Amended Complaint 2. Motion to Compel Production 3. Motion to Compel Production <u>MOTION FOR LEAVE TO FILE AMENDE COMPLAINT</u> Plaintiff, Jack Cheng moves for an order granting leave to file a Third Amended Complaint. Motion is GRANTED. CCP§473(a)(1), Ca Rules of Court, Rule 3.1324(b)(1)-(4). The Court finds the Motion to be timely. Any prejudice can be mitigated by a trial continuance, if necessary. However, that appears unlikely as the proposed Third Amended complaint is more for clarification purposes than expanding the scope of the litigation. Plaintiff to give notice and separately file the Third Amended Complaint.
11.	30-2023-01336786 Vietnamese American Buddhist Center for Charitable Services vs. Bui	1. Status Conference *No Tentative Ruling for Status Conference*